

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3675

By: Provenzano

AS INTRODUCED

An Act relating to health insurance; providing definitions; prohibiting utilization review agents from using an automated system to make adverse determinations; permitting Insurance Commissioner auditing authority; clarifying act does not prohibit use of automated decision systems for administrative support or fraud detection; directing notice of adverse determinations to include certain information; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 6550 of Title 36, unless there is created a duplication in numbering, reads as follows:

As used in this act:

1. "Adverse determination" means a determination by a utilization review agent that health care services provided or proposed to be provided to a patient are not medically necessary or appropriate, or are experimental or investigational;

1        2. "Algorithm" means a computerized procedure consisting of a  
2 set of steps used to accomplish a determined task;

3        3. "Artificial intelligence system" means any machine learning-  
4 based system that, for any explicit or implicit objective, infers  
5 from the inputs the system receives how to generate outputs,  
6 including content, decisions, predictions, and recommendations, that  
7 can influence physical or virtual environments;

8        4. "Automated decision system" means an algorithm, including an  
9 algorithm incorporating an artificial intelligence system, that uses  
10 data-based analytics to make, suggest, or recommend certain  
11 determinations, decisions, judgments, or conclusions; and

12        5. "Qualified human professional" means an individual with the  
13 training, education and certification required to legally make  
14 medical decisions.

15        SECTION 2.        NEW LAW        A new section of law to be codified  
16 in the Oklahoma Statutes as Section 6550.1 of Title 36, unless there  
17 is created a duplication in numbering, reads as follows:

18        A. Any adverse determination made by an algorithm, artificial  
19 intelligence system, or automated decision system shall be reviewed  
20 by a qualified human professional before being finalized.

21        B. The Insurance Commissioner may audit and inspect at any time  
22 a utilization review agent's use of an automated decision system for  
23 utilization review.  
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1 C. This section does not prohibit the use of an algorithm,  
2 artificial intelligence system, or automated decision system for  
3 administrative support or fraud-detection functions.

4 SECTION 3. NEW LAW A new section of law to be codified  
5 in the Oklahoma Statutes as Section 6550.2 of Title 36, unless there  
6 is created a duplication in numbering, reads as follows:

7 Notice of an adverse determination must include:

8 1. The principal reasons for the adverse determination;

9 2. The clinical basis for the adverse determination;

10 3. A description of and the source of the screening criteria  
11 and review procedures used as guidelines in making the adverse  
12 determination; and

13 4. A description of the procedure for the complaint and appeal  
14 process, including notice to the enrollee of the enrollee's right to  
15 appeal an adverse determination to an independent review  
16 organization and of the procedures to obtain that review.

17 SECTION 4. This act shall become effective November 1, 2026.

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